

TENTATIVE RULINGS for LAW and MOTION

January 13, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Acclaim Mobility, LLC v. Derkach et al.**
Case No. CV-2024-2015

Hearing Date: **January 13, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Acclaim Mobility, LLC's unopposed motion for order discharging stakeholder and for related orders is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 386, 386.5.) The Court finds that this motion is premature because defendants West Harbor Multi Specialty Group, David L. Kahan, D.P.M., University Medical Imaging, Dufour Chiropractic, Carl Shin, M.D., Center for Interdisciplinary Spine, Sacramento Spine Treatment, Philip Orisek, M.D., and Medfin Manager, LLC, have not been properly served or made a general appearance; thus, the Court lacks jurisdiction over them. (Code Civ. Proc., § 410.50.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Ballejos v. Safelite Fulfillment, Inc. et al.**
Case No. CV-2025-2879

Hearing Date: **January 13, 2026** **Department Eleven** **9:00 a.m.**

Defendant Yael Torres' motion for protective order is **GRANTED**. (Code Civ. Proc., § 2019.030.) All discovery pertaining to Mr. Torres is stayed until 30-days after Mr. Torres files an answer. (See *Ryan v. Superior Court of Los Angeles County* (1960) 186 Cal.App.2d 813, 817; *Terminals Equip. Co. v. City* (1990) 221 Cal.App.3d 234, 247.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Bank of America, N.A. v. Mission**
Case No. CV-2024-1817

Hearing Date: **January 13, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Bank of America, N.A.'s unopposed motion for order setting aside and vacating its prior order of dismissal and for entry of judgment pursuant to stipulation of the parties is **GRANTED**. (Code Civ. Proc., § 664.6.) The Court finds that defendant Ivy Mission failed to make all the payments pursuant to the October 22, 2024, Stipulation Agreement ("Agreement"), which was entered into between plaintiff and defendant while litigation was pending. (Mallonga Decl., ¶¶ 3, 5, 6, Exhibits 1, 2.) The parties agreed that the Court would retain jurisdiction to enforce the Agreement, and if defendant breached the Agreement plaintiff could seek judgment against defendant in the amount of the unpaid balance, plus court costs, less any payments received. (*Id.*, at ¶ 3, Exhibit 1, ¶¶ 4, 5, 7.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of **\$7,056.66**. (*Id.*, at ¶¶ 6, 7, Exhibit 2.)

The notice of motion provides notice of this Court's tentative ruling system; however, the notice does not contain the requisite language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Garcia v. Manukyan**
 Case No. CV-2025-1244

Hearing Date: **January 13, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Gabriel Garcia, by and through his attorney-in-fact, Libeth Mora's unopposed motion to deem matters admitted is **GRANTED**. (Code Civ. Proc., § 2033.280.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 is required.

TENTATIVE RULING

Case: **Martinez v. Hwang**
Case No. CV-2025-0700

Hearing Date: **January 13, 2026** **Department Fourteen** **9:00 a.m.**

Motion to set aside:

Ralph B. Hwang, individually and as a Trustee of B R & Hwang Family Trust and Feng-Yu Hwang, individually and as a Trustee of B R & Hwang Family Trust's ("defendants") request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendants' unopposed motion to set aside/vacate plaintiffs James Martinez and Beatrice Chaidez's request for entry of default/clerk's entry of default is **GRANTED**. (Code Civ. Proc., § 473.) "An attorney has both an ethical and statutory obligation to warn opposing counsel, if counsel's identity is known, of an intent to seek a default and to give counsel a reasonable opportunity to file a responsive pleading." (*Shapell SoCal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 203 [*"Shapell"*]; *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 137; Code Civ. Proc., § 583.130.) Despite knowing the identity of defendants' counsel, plaintiffs sought and obtained defaults against defendants without notification and allowing a reasonable opportunity for defendants to file a responsive pleading. (Cammack decl., ¶¶ 3, 8-13.) Several factors, in combination with this breach of ethics and violation of section 583.130, necessitate setting aside the defaults entered against defendants. (*Shapell, supra*, 85 Cal.App.5th at pp. 216-217.) Specifically, based on the evidence presented, plaintiffs' counsel knew the identity of defendants' counsel before the initiation of this litigation, plaintiffs' counsel gave no warning or notice before seeking entry of default against defendants, and there is no apparent prejudice as to plaintiffs. (Cammack decl., ¶¶ 3, 4, & 12; RJN, Exhibits 10-11; see also *Lasalle, supra*, 36 Cal.App.5th at p. 134.)

Defendants' answer, attached to their notice of motion, is deemed filed as of January 13, 2026.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: **Munoz v. Fairview Investment Fund VIII, LP**
Case No. CV-2025-2796

Hearing Date: **January 13, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Fairview Investment Fund VIII, LP's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendant's demurrer as to the first cause of action for declaratory relief on the grounds of failure to state a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the complaint does not state facts sufficient for this cause of action. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605-606; Code Civ. Proc., § 1060; Complaint, ¶¶ 2-4 & 8-11.) While the notice of default (attached to the complaint) states that plaintiffs Joseph Michael Munoz III, individually, and Joseph Michael Munoz III and Kimberlee A. Puente, Trustees of the Guinane-Munoz-Puente Family Trust failed to pay delinquent property taxes, the complaint alleges that "plaintiffs have and are current in all of their tax obligations with the County of Yolo." (Complaint, ¶ 9.) Such allegations create a factual dispute, not proper for resolution on demurrer. (See, e.g., *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; see also *Chacon v. Union Pacific Railroad* (2020) 56 Cal.App.5th 565, 573 ["Although the *existence* of a document may be judicially noticeable, the truth of the statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable"], emphasis in original, quotation marks and citation omitted.)

Defendant's demurrer as to the second cause of action for injunctive relief on the grounds of failure to state a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) As the Court is overruling defendant's demurrer as to the first cause of action, defendant has failed to establish that the complaint does not state facts sufficient for this cause of action. (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410; Complaint, ¶¶ 9-10 & 13-15.)

Defendant's demurrer as to the third cause of action for accounting on the grounds of failure to state a cause is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the complaint does not state facts sufficient for this cause of action. (*Sass v. Cohen* (2020) 10 Cal.5th 861, 869; Complaint, ¶¶ 4 & 16-17.) Defendant has not shown that defendant and plaintiffs' relationship is not one that requires an accounting. (*Sass, supra*, 10 Cal.5th at p. 869.)

Defendant's demurrer as to each cause of action on the grounds of uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The complaint is not uncertain such that defendant cannot reasonably respond. (See *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed"].)

Defendant shall answer plaintiffs' complaint by no later than **January 23, 2026**. (Cal. Rules of Court, rule 3.1320(g), (j).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.